



Shepard's®: Report Content

History:Requested



Citing Decisions:None Applied

Other Citing Sources:None Applied

Table Of Authorities:Not Requested

Shepard's®: [Cross v. United States](#) 145 U.S. 571,12 S. Ct. 842,36 L. Ed. 821,1892 U.S. LEXIS 2167: (U.S. May 16, 1892)

No subsequent appellate history. [Prior history](#) available.

History (2)

Prior

1. United States v. Cross, 9 Mackey 365

Court: D.C. | **Date:** 1892

2. **Citation you Shepardized™**

Writ of error dismissed:

[Cross v. United States](#), 145 U.S. 571, 12 S. Ct. 842, 36 L. Ed. 821, 1892 U.S. LEXIS 2167

Court: U.S. | **Date:** May 16, 1892

Citing Decisions (21)

Analysis: Followed by (1), "Cited by" (20)

Headnotes: HN14 (6), HN13 (5), HN8 (4), HN11 (3), HN7 (2), HN12 (2), HN9 (1), HN1 (1)

U.S. Supreme Court

1. [Carroll v. United States](#), 354 U.S. 394, 77 S. Ct. 1332, 1 L. Ed. 2d 1442, 1957 U.S. LEXIS 583 
LB Cited by: 354 U.S. 394 p.400; 77 S. Ct. 1332 p.1336; 1 L. Ed. 2d 1442 p.1446
 ... court was available in the appellate tribunal of the District. However, the appellate judgment was not further reviewable in this Court in any manner during this period. In re Heath , 144 U.S. 92 ; **Cross v. United States , 145 U.S. 571** . When the Acts of 1889 and 1891 opened up appellate review of criminal convictions in the federal courts throughout the country, at first directly to this Court, it was held that those statutes did not apply to cases originating in the District of Columbia . Ibid...
Discussion:   **Court:** U.S. **Date:** June 24, 1957

2. [O'Donoghue v. United States](#), 289 U.S. 516, 53 S. Ct. 740, 77 L. Ed. 1356, 1933 U.S. LEXIS 933 
LB Cited by: 289 U.S. 516 p.543; 53 S. Ct. 740 p.748; 77 L. Ed. 1356 p.1367
 ... other circuit courts of the United States but also certain additional powers which the latter courts did not possess. Aside from provisions of the District of Columbia Code, it has been held repeatedly that the Supreme Court of the District is a Court of the United States. Embry v. Palmer, 107 U.S. 3 ; Callan v. Wilson, 127 U.S. 540 ; Benson v. Henkle, 198 U.S. 1 ; James v. United States, 202 U.S. 407 -8 ; **Cross v. United States, 145 U.S. 571 , 576** ; Moss v. United States, 23 App. D. C. 475 , 481...
Discussion:   **Court:** U.S. **Date:** May 29, 1933 **Headnotes:** HN12, HN13, HN14

3. [United States v. Dickinson](#), 213 U.S. 92, 29 S. Ct. 485, 53 L. Ed. 711, 1909 U.S. LEXIS 1857 
LB Cited by: 213 U.S. 92 p.101; 29 S. Ct. 485 p.488; 53 L. Ed. 711 p.718
 ... cases within their criminal jurisdiction; and when such jurisdiction is intended to be conferred, it should be done in clear and explicit language. **Cross v. United States, 145 U.S. 571 , 574** . FULLER MR. CHIEF JUSTICE FULLER delivered the opinion of the court. Dickinson and one Foster were jointly indicted under § 5209 of the Revised Statutes of the United States , which is a part of the National Bank Act. Foster, the principal defendant, was cashier of the South Danvers National Bank, and was...
Discussion:   **Court:** U.S. **Date:** April 05, 1909

4. [New v. Oklahoma](#), 195 U.S. 252, 25 S. Ct. 68, 49 L. Ed. 182, 1904 U.S. LEXIS 716 
G Positive: 195 U.S. 252 p.256; 25 S. Ct. 68 p.70; 49 L. Ed. 182 p.184
 There remains the act of February 6, 1889, 25 Stat. 655, c. 113, by the sixth section of which it was provided that "in all cases of conviction of crime, the punishment of which provided by law is death, tried before any court of the United States, the final judgment of such court against the respondent shall, upon the application of the respondent, be reexamined, reversed, or affirmed by the Supreme Court of the United States upon a writ or error." As to this, however, it was ruled in Cross v. United States, 145 U.S. 571, that, in view of the terms of the whole section, the allowance of a writ of error to any appellate

Shepard's®: Cross v. United States, 145 U.S. 571, 12 S. Ct. 842, 36 L. Ed. 821, 1892 U.S. LEXIS 2167 (U.S., May 16, 1892)

tribunal was not contemplated, but merely to review the judgment of the trial court. (HN13, HN14)

Discussion:  **Court:** U.S. | **Date:** November 28, 1904 | **Headnotes:** HN13, HN14

5. [Binyon v. United States](#), 195 U.S. 623, 25 S. Ct. 786, 49 L. Ed. 349, 1904 U.S. LEXIS 663 

LB Cited by: 195 U.S. 623 p.623; 25 S. Ct. 786 p.786; 49 L. Ed. 349 p.349

... Binyon v. United States, 195 U.S. 623 RUFUS BINYON, PLAINTIFF IN ERROR, v. THE UNITED STATES. Binyon v. United States No. 176. Supreme Court of the United States 195 U.S. 623 25 S. Ct. 786 49 L. Ed. 349 1904 U.S. LEXIS 663 October 17, 1904 , Decided Argued October 14, 1904 . In error to the United States Court of Appeals for the Indian Territory. Mr. W. H. Green for plaintiff in error. The Attorney General and Mr. Assistant Attorney General Purdy for defendant in error. Per Curiam. Dismissed for the want of jurisdiction, on the authority of Brown v. United States, 171 U.S. 631 ; **Cross v. United States, 145 U.S. 571**

Discussion:  **Court:** U.S. | **Date:** October 17, 1904

6. [Sinclair v. District of Columbia](#), 192 U.S. 16, 24 S. Ct. 212, 48 L. Ed. 322, 1904 U.S. LEXIS 1028 

LB Cited by: 192 U.S. 16 p.19; 24 S. Ct. 212 p.213; 48 L. Ed. 322 p.324

... Stat. 826, In re Heath , 144 U.S. 92 ; or under the act of February 6, 1889, c. 113, 25 Stat. 655, **Cross v. United States , 145 U.S. 571** ; or on habeas corpus, Cross v. Burke , 146 U.S. 82 . And although the validity of any patent or copyright, or of a treaty or statute of, or an authority exercised under, the United States , was not drawn in question in those cases, it was distinctly ruled in reaching the conclusions announced that neither of the sections of the act of March 3, 1885, applied to...

Discussion:  **Court:** U.S. | **Date:** January 04, 1904 | **Headnotes:** HN7, HN8, HN11, HN13, HN14

7. [Brown v. United States](#), 171 U.S. 631, 19 S. Ct. 56, 43 L. Ed. 312, 1898 U.S. LEXIS 1625 

LB Cited by: 171 U.S. 631 p.635; 19 S. Ct. 56 p.57; 43 L. Ed. 312 p.314

... , 1895, whereby it is provided that writs of error in capital cases shall be taken to the Court of Appeals of the United States for the Indian Territory. This court had occasion to consider the effect of the act of February 6, 1889, in respect to the judgments of the Supreme Court of the District of Columbia in capital cases, in the case of **Cross v. United States, 145 U.S. 571** , and it was there said: "It is contended on behalf of the Government that the writ of error will not lie because the Supreme...

Discussion:  **Court:** U.S. | **Date:** October 24, 1898

8. [Chapman v. United States](#), 164 U.S. 436, 17 S. Ct. 76, 41 L. Ed. 504, 1896 U.S. LEXIS 1879 

LB Cited by: 164 U.S. 436 p.448; 17 S. Ct. 76 p.78, p.77; 41 L. Ed. 504 p.509

... under the judiciary act of March 3, 1891, c. 517, 26 Stat. 826, In re Heath, 144 U.S. 92 ; or under the act of February 6, 1889, c. 113, 25 Stat. 655, **Cross v. United States, 145 U.S. 571** ; or on habeas corpus, Cross v. Burke, 146 U.S. 82 . And although the validity of any patent or copyright, or of a treaty or statute of, or an authority exercised under, the United States , was not drawn in question in those cases, it was distinctly ruled in reaching the conclusions announced that neither of the...

Discussion:  **Court:** U.S. | **Date:** November 30, 1896 | **Headnotes:** HN8, HN11, HN14

9. [United States v. Rider](#), 163 U.S. 132, 16 S. Ct. 983, 41 L. Ed. 101, 1896 U.S. LEXIS 2252, 8 Ohio F. Dec. 607 

LB Cited by: 163 U.S. 132 p.138; 16 S. Ct. 983 p.985; 41 L. Ed. 101 p.103

... judgments of the Circuit Courts of the United States in cases within their criminal jurisdiction. *United States v. Sanges*, 144 U.S. 310, 319; **Cross v. United States, 145 U.S. 571, 574**. By section four of the judiciary act of March 3, 1891, c. 517, 26 Stat. 826, it was provided that "the review, by appeal, by writ of error or otherwise, from the existing Circuit Courts shall be had only in the Supreme Court of the United States, or in the Circuit Courts of Appeals hereby established, according...

Discussion:  **Court:** U.S. **Date:** May 18, 1896 **Headnotes:** HN9, HN12, HN13, HN14

10. [In re Chapman](#), 156 U.S. 211, 15 S. Ct. 331, 39 L. Ed. 401, 1895 U.S. LEXIS 2128 

LB Cited by: 156 U.S. 211 p.215; 15 S. Ct. 331 p.332; 39 L. Ed. 401 p.402

... jurisdiction over the judgments of the Supreme Court of the District of Columbia in criminal cases or on habeas corpus. *In re Heath*, Petitioner, 141 U.S. 92; **Cross v. United States, 145 U.S. 571**; *Cross v. Burke*, 146 U.S. 82. But it is contended that under section 8 of the act of February 9, 1893, 27 Stat. 434, c. 74, establishing a Court of Appeals for the District of Columbia, the judgments of the Supreme Court of the District reviewable in the Court of Appeals may be reviewed ultimately in this...

Discussion:  **Court:** U.S. **Date:** February 04, 1895 **Headnotes:** HN8

11. [In re Schneider](#), 148 U.S. 157, 13 S. Ct. 572, 37 L. Ed. 404, 1893 U.S. LEXIS 2217 

LB Cited by: 148 U.S. 157 p.162; 13 S. Ct. 572 p.572; 37 L. Ed. 404 p.406

... 1909 has not been considered by this court as repealed by said act of 1885, is manifest from the decisions of this court upon questions of habeas corpus from those Territories. *Hans Nielsen*, Petitioner, 131 U.S. 176. THE CHIEF JUSTICE: The application for a writ of error or appeal is denied upon the authority of *Cross v. Burke*, 146 U.S. 82; *In re Heath*, Petitioner, 144 U.S. 92; *Cross*, Petitioner, 146 U.S. 271; **Cross v. United States, 145 U.S. 571**. See also *Railroad co. v. Grant*, 98 U.S. 398; *Dennison v. Alexander*, 103 U.S. 522; *United States ex rel. Trask v. Wanamaker*, 147 U.S. 149. Writ denied....

Discussion:  **Court:** U.S. **Date:** March 14, 1893

12. [In re Cross](#), 146 U.S. 271, 13 S. Ct. 109, 36 L. Ed. 969, 1892 U.S. LEXIS 2196 

LB Cited by:

... FULLER MR. CHIEF JUSTICE FULLER delivered the opinion of the court. This is a petition for writs of habeas corpus and certiorari. The matters set up will be found sufficiently reported in *Cross v. Burke*, ante, 82, and **Cross v. United States, 145 U.S. 571**. The application to us is in effect the same as that made to the Supreme Court of the District of Columbia, whose judgment denying the writ of habeas corpus was brought to this court by appeal, upon the hearing of which the merits were fully...

Discussion:  **Court:** U.S. **Date:** December 05, 1892

3rd Circuit - U.S. District Courts

13. [United States ex rel. De Vita v. McCorkle](#), 133 F. Supp. 169, 1955 U.S. Dist. LEXIS 2862 

Shepard's®: Cross v. United States, 145 U.S. 571, 12 S. Ct. 842, 36 L. Ed. 821, 1892 U.S. LEXIS 2167 (U.S., May 16, 1892)

LB Cited by: 133 F. Supp. 169 p.177

... , certiorari denied, sub nom. *Rosenstein v. United States*, 1929, 280 U.S. 581 , 50 S.Ct. 33 , 74 L.Ed. 631 ; *United States v. Cross*, 9 Mackey 365 , 20 D.C. 365 , error dismissed **Cross v. United States, 145 U.S. 571 , 12 S.Ct. 842 , 36 L.Ed. 821** ; *State v. Kokoszka*, 123 Conn. 161 , 193 A. 210 ; *People v. Leonti*, 262 N.Y. 256 , 186 N.E. 693 ; *Cooper v. State*, 27 Okl.Cr. 278 , 226 P. 1066 ; *State v. Cooler*, 30 S.C. 105 , 8 S.E. 692 , 3 L.R.A. 181 . 34. See, for example, *Ford v. United States*, supra...

Discussion:  **Court:** Dist. N.J. | **Date:** July 14, 1955

D.C. Circuit - Court of Appeals

14. [Young v. United States](#), 212 F.2d 236, 94 U.S. App. D.C. 54, 1954 U.S. App. LEXIS 3353 

LB Cited by: 212 F.2d 236 p.238

... 1. Section 204 was incorporated into the District of Columbia Code by the Act of March 3, 1901, 31 Stat. 1189. Its inclusion in the 1951 edition of the Code does not constitute a reenactment and it has not otherwise been reenacted. 2. D.C. Code 1951 , Tit. 11, § 1417, requires all District of Columbia jurors to be 'residents.' 3. *United States v. Cross*, D.C., 9 Mackey 365 , appeal dismissed, 1892, **145 U.S. 571 , 12 S.Ct. 842 , 36 L.Ed. 821** ; *United States v. Nardello*, D.C. 1886, 4 Mackey 503 . Both cases concern the converse of the instant issue: a prospective juror was challenged as not being a resident of the District of Columbia because he voted elsewhere. Held, the juror was a resident. The applicable statute differed from the present one only in that it contained no requirement that jurors be able to read or write. 4. See, also, *Dow v. United States Steel Corp.*, 3 Cir., 1952, 195 F.2d 478 (naturalized foreign born citizens,...

Discussion:  **Court:** D.C. Cir. Ct. of App. | **Date:** April 08, 1954

15. [Chapman v. United States](#), 8 App. D.C. 302, 1896 U.S. App. LEXIS 3173 

LB Cited by:

... -mentioned act has been construed by the Supreme Court of the United States in several cases; as in the cases of *In re Heath* , 144 U.S. 92 , 36 L. Ed. 358 , 12 S. Ct. 615 ; **Cross v. United States , 145 U.S. 571** ; and *Cross v. Burke* , 146 U.S. 82 , 36 L. Ed. 896 , 13 S. Ct. 22 . In this last mentioned case, the Supreme Court said, "We have held this court has no jurisdiction to grant a writ of error to review the judgments of the Supreme Court of the District in criminal cases, either under the Judiciary Act of March 3, 1891, or under the act of Congress of February 6, 1889, or any other;" citing *In re Heath* , and **Cross v. United States, supra**. And in the same case, in speaking of the act of March 3, 1885, before referred to, the court expressly say: "The act does not apply in either section to any criminal case"--citing *Farnsworth v. Montana* , 129 U.S. 104 , 32 L. Ed. 616 , 9 S. Ct. 253 , and *United States v. Sanges* ,...

Discussion:  **Court:** D.C. Cir. Ct. of App. | **Date:** April 07, 1896 | **Headnotes:** HN8, HN11, HN13, HN14

D.C. Circuit - U.S. District Court

16. [United States v. Haywood](#), 289 F. Supp. 479, 1968 U.S. Dist. LEXIS 9034 

LB Cited by: 289 F. Supp. 479 p.481

... appears that in fact all 23 members of this particular grand jury do not vote elsewhere. It has been uniformly the practice in this jurisdiction not to disqualify jurors who vote elsewhere if they have in fact the necessary residence in the District of Columbia . *United States v. Nardello*, 15 D.C. (4 Mackey) 503 (1886) ; *United States v. Cross*, 20 D.C. (9 Mackey) 365 (1892) , appeal dismissed, **145 U.S. 571 , 12 S. Ct. 842 , 36 L. Ed. 821 (1892)** . Indeed, it has been suggested that such exclusion...

Discussion:  **Court:** District of D.C. | **Date:** August 08, 1968

Administrative Agency Decisions

17. A.R.D. 104

LB Cited by:

Arizona Supreme Court

18. [Dent v. United States](#), 8 Ariz. 413, 76 P. 455, 1904 Ariz. LEXIS 96 ▲

LB Cited by: 8 Ariz. 413 p.415; 76 P. 455 p.456

... . Therefore, if it be that the correctness of our determination upon the constitutional question cannot be passed upon by such court in this particular case, it is perhaps for that reason all the more incumbent upon us to follow in the path marked out for us by that court. Farnsworth v. Montana, 129 U.S. 104, 9 Sup. Ct. 253, 32 L. Ed. 616; **Cross v. United States, 145 U.S. 571, 12 Sup. Ct. 842, 36 L. Ed. 821**; Chapman v. United States, 164 U.S. 436, 17 Sup. Ct. 76, 41 L. Ed. 504; In re...

Discussion: ■■■ | **Court:** Ariz. | **Date:** March 26, 1904

D.C. Court of Appeals

19. [Brookens v. United States](#), 182 A.3d 123, 2018 D.C. App. LEXIS 124, 2018 WL 1630928 ▲

LB Cited by: 182 A.3d 123 p.131

... law.") 14 See D.C. Code § 23-113 (a)(2)-(5) (providing that the prosecution of referenced crimes "is barred" unless commenced within the specified time period); see generally United States v. Kwai Fun Wong, 135 S. Ct. 1625, 1632, 191 L. Ed. 2d 533 (2015) (explaining that time bars are jurisdictional if the legislature clearly states that is their effect). 15 In re Gompers, 40 App. D.C. at 297; see also **Cross v. United States, 145 U.S. 571, 572, 12 S. Ct. 842, 36 L. Ed. 821 (1892)**; Hernandez...

Discussion: ■■■ | **Court:** D.C. | **Date:** April 05, 2018 | **Headnotes:** HN1

20. [718 Assocs. v. Banks](#), 21 A.3d 977, 2011 D.C. App. LEXIS 358 ●

LB Cited by: 21 A.3d 977 p.982

... predecessor), rev'd on other grounds, 346 U.S. 100, 73 S. Ct. 1007, 97 L. Ed. 1480 (1953); see also **Cross v. United States, 145 U.S. 571, 573, 12 S. Ct. 842, 36 L. Ed. 821 (1892)** (explaining that "[t]he supreme court [of the District of Columbia] sitting at special term and the supreme court sitting in general term are the same tribunal, but the court in general term exercises appellate powers, and is an appellate court"). 11 The trial court, in its judgment in this case, cites to Sullivan as an...

Discussion: ■■■ | **Court:** D.C. | **Date:** June 23, 2011 | **Headnotes:** HN7

Missouri Supreme Court

21. [State v. Thayer](#), 158 Mo. 36, 58 S.W. 12, 1900 Mo. LEXIS 58 ◆

LB Cited by: 158 Mo. 36 p.54; 58 S.W. 12 p.14

... ; Ex parte Cosner, 4 Tex. Court of App. 89; **Cran v. U. S., 145 U.S. 571**; 1 Tex. 438; Chicago, Rock Island & Pac. Ry. Co. v. Dey, 76 Ia. 282; 41 Ill. App. 112; 32 Ill. App. 57; 10 N. Y. 353; U.S. v. Norse, 6 Peters 495; Farnsworth v. Mustan d, 129 U.S. 104; 153 U.S. 687; 102 Ind. 1, 1 N.E. 55; 2 Chitty's Gen. Prac., 215; Tierney v. Dodge, 9 Minn. 166, 9 Gilf. 153; King v. Jukes, 8 T. 542; King v. Morler, 2 Bur. 1042; Raser v. Marlow, R. N. Charlt. (Ga.), 543; 25 Pa. 473; Queens v...

Court: Mo. | **Date:** June 30, 1900

Other Citing Sources: (4)

Law Reviews and Periodicals

1. [ARTICLE: A SIX-THREE RULE: REVIVING CONSENSUS AND DEFERENCE ON THE SUPREME COURT](#), 37 Ga. L. Rev. 893

Content: Law Reviews | **Date:** 2003

2. [VIGNETTE: Vignette](#), 29 Okla. City U.L. Rev. 441

Content: Law Reviews | **Date:** 2004

Briefs

3. [FELKER v. TURPIN](#), 1996 U.S. S. Ct. Briefs LEXIS 285

... in the Supreme Court of federal criminal cases." Id. "In fact, it was not until 1889 that there was generally established direct appeals in federal criminal cases." Id. See *United States v. Sanges*, 144 U.S. 310, 319 (1892); see also *United States v. Cross*, 145 U.S. 571 (1892); *Ex parte Bigelow*, 113 U.S. 328, 329 (1885). Notably, the Court never questioned this limitation on its jurisdiction (even with respect to capital cases), and indeed eventually placed its stamp of approval ...

Content: Court Filings | **Date:** May 17, 1996

4. [WRIGHT v. WEST](#), 1992 U.S. S. Ct. Briefs LEXIS 146

... *Butler v. McKellar*, 494 U.S. 407, 108 L. Ed. 2d 347, 110 S. Ct. 1212 (1990) *Coleman v. Thompson*, 115 L. Ed. 2d 640, 111 S. Ct. 2546 (1991) *Cooper v. Aaron*, 358 U.S. 1, 3 L. Ed. 2d 5, 78 S. Ct. 1401 (1958) *Cross v. United States*, 145 U.S. 571, 36 L. Ed. 821, 12 S. Ct. 842 (1892) *Douglas v. California*, 372 U.S. 353, 9 L. Ed. 2d 811, 83 S. Ct. 814 (1963) *Duckworth v. Eagan*, 492 U.S. 195, 106 L. Ed. 2d 166, 109 S. Ct. 2875 (1989) *Estelle v. McGuire*, ...

Content: Court Filings | **Date:** January 30, 1992

Legend

	Warning - Negative Treatment is Indicated		Red - Warning Level Phrase
	Questioned - Validity questioned by citing references		Orange - Questioned Level Phrase
	Caution - Possible negative treatment		Yellow - Caution Level Phrase
	Positive - Positive treatment is indicated		Green - Positive Level Phrase
	Analysis - Citing Refs. With Analysis Available		Blue - Neutral Level Phrase
	Cited - Citation information available		Light Blue - No Analysis Phrase
	Warning - Negative case treatment is indicated for statute		

Shepard's®: Cross v. United States, 145 U.S. 571, 12 S. Ct. 842, 36 L. Ed. 821, 1892 U.S. LEXIS 2167
(U.S., May 16, 1892)